26CV03882 Faizah Dean vs Housing Authority of The City of Santa Barbara et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-21

Motion: Motion Preliminary Injunction

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Tentative Ruling: Faizah Dean vs Housing Authority of The City of Santa Barbara et al

Case Number

26CV03882

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Motion Preliminary Injunction

Tentative Ruling

For the reasons set forth herein, the motion for a preliminary injunction is denied.

Background:

This action commenced on June 12, 2026, by the filing of the original complaint by plaintiff Faizah Dean. On June 24, 2026, prior to the filing of any responsive pleadings by defendants, plaintiff filed her operative first amended complaint (FAC) against defendants Housing Authority of the City of Santa Barbara (Housing Authority), Rob Fredericks, Veronica Loza, Sandra Rivas, 2nd Story Associates (2nd Story), NBCC dba New Beginnings Counseling Center (NBCC), Victor Virgen, Christian Morgan, Kristine Schwarz, and Matthew Chapa, Automobile Club of Southern California (AAA), Chris Evans, and Kimball Tirey & St John LLC.

The caption of the FAC purports to bring causes of action for: (1) Administrative Extrinsic Fraud, (2) Fraud on the Court, (3) Civil Rights Retaliation, (4) Disparate Impact Discrimination, (5) Intentional Infliction of Emotional Distress (IIED) and Conversion of Personal Property, and (6) Violation of the Americans with Disabilities Act (ADA) and California Rules of Court, rule 1.100. However, in the body of the FAC, plaintiff only sets forth causes of action for: (1) Administrative Extrinsic Fraud and Retaliation, (2) Fraud on the Court - As to Evans and Kimball Tirey & St. John, (3) Public Employee Liability Under Government Code section 950, and (4) Extrinsic Fraud.

As alleged in the FAC:

“Plaintiff is a disabled independent contractor and Section 8 participant utilizing the secure coordinates of New Beginnings Counseling Center within this county. 2. Defendants Rob Fredericks, Veronica Loza, and Sandra Rivas are liable under Government Code Section 950 et seq. for executing a malicious voucher termination notice on May 28, 2026, built on explicit data-entry fabrication, anchoring their entire ledger on an impossible future annual review date of ‘10/1/2026.’ 3. Defendants intentionally routed this time-sensitive notice to an empty, locked mailbox loop at Plaintiff’s old unit, with full corporate knowledge that a physical Sheriff lockout occurred on May 18, 2026, to deliberately engineer an administrative default and violate procedural Due Process.” (FAC, p. 5, ll. 15-23.)

“Defendants NBCC, Victor Virgen, and Christian Morgan engaged in further outrageous, negligent conduct by utilizing a moving crew to stack Plaintiff’s property 16 feet high and three deep inside a large 13x9 storage unit. Despite having 117 square feet of available floor space to arrange items safely and horizontally, the defendants engineered a dangerous, buckling box blockade and provided a flimsy, unstable 8-foot ladder, intentionally denying an unhoused litigant access to her necessary personal property and corporate records.” (FAC, p. 5, l. 24-p. 6, l. 2.)

“Defendant Chris Evans, Esq. and his firm committed an explicit Fraud on the Court violating Business and Professions Code § 6128 by drafting and filing a verified unlawful detainer complaint that falsely swore under penalty of perjury that Plaintiff was a ‘non-subsidized’ tenant to intentionally mislead the trial court and circumvent the mandatory 90-day notification shields required by Civil Code Section 1954.535.5. Defendants concurrently pocketed public federal HAP contract funds for the month of May 2026 post-judgment, operating as a total waiver of enforcement under CACI 4324, and constituting an active scheme to defraud the federal government.” (FAC, p. 6, ll. 7-14.)

“Plaintiff alleges that Defendant Chris Evans is a Managing Partner of the Landlord/Tenant Practice Group at Kimball, Tirey & St. John LLP, who explicitly markets his professional expertise in affordable housing law, rent control, and public housing protocols, and whose primary national clients include the United States Secretary of Housing and Urban Development (HUD) and Freddie Mac.” (FAC, p. 6, ll. 17-21.)

“Because of his directed professional alignment with the Secretary of HUD, Defendant Evans possessed actual, expert knowledge of Section 8 regulatory guidelines, mandatory notification timelines, and federal due process safeguards. Defendant Evans knowingly, intentionally, and in bad faith signed the false verification to bypass federal HUD tenant protections, intentionally deceiving the tribunal to fast-track an illegal action.” (FAC, p. 6, ll. 22-26.)

“On May 28, 2026, while Plaintiff’s master Record on Appeal in Case No. 25CV07216 stood completely uncertified and on an active standby freeze pending state Transcript Fund compilation under Rule 8.882(a), Defendants Housing Authority and Sandra Rivas issued a preliminary notice proposing to terminate Plaintiff’s life-sustaining housing voucher.” (FAC, p. 7, ll. 17-20.)

“This notice represents explicit Extrinsic Fraud. The fact of the document anchors its entire calculation ledger on an impossible, non-existent future annual review date of ‘10/1/2026.’ Concurrently, Defendant Veronica Loza admitted in writing that the agency intentionally ‘used what they had,’ omitting 100% of Plaintiff’s variable business operating expenses in direct violation of HUD Net Income Regulation 24 CFR Section 5.609(b)(2). Defendants intentionally routed this notice via an empty mailbox loop at Plaintiff’s old apartment, with full knowledge that a lockout had been executed on May 18, 2026, to deliberately engineer an administrative default and block access to internal due process.” (FAC, p. 7, ll. 21-28.)

“Defendant Chris Evans, Esq. and Kimball, Tirey & St. John LLP committed a separate, concurrent Fraud on the Court by drafting and filing a verified unlawful detainer complaint that falsely swore under penalty of perjury that Plaintiff was a ‘non-subsidized’ tenant. This statement was manufactured to intentionally mislead the trial court and circumvent the mandatory 90-day statutory notification tracks required by Civil Code Section 1954.535.” (FAC, p. 8, ll. 1-5.)

By way of her Prayer for Relief, plaintiff seeks “actual economic damages, full business interruption restitution, punitive damages for individual administrative and legal malice, and maximum statutory litigation costs.” (FAC, p. 8, ll. 13-15.)

On June 24, 2026, plaintiff filed the present amended motion for preliminary injunction and order to show cause. By way of the motion, plaintiff seeks and order: (1) “Staying and freezing all administrative actions, notices, or proposals by Defendants to alter, suspend, or termination Plaintiff’ Section 8 Housing Choice Voucher participation pursuant to 24 CFR § 982.555(h).”; (2) “Order Defendnats to immediately unfreeze Plaintiff’s housing relocation search, issue her necessary moving packets, transfer documents, and voucher extensions.”; and (3) Order[] Defendants to produce Plaintiff’s complete administrative file, including unedited Yardi/Elite software digital system logs and internal timestamps matching the August 28, 2025, calculation.” (Motion, p. 2, ll. 8-17.)

On August 12, 2026, defendants Housing Authority, Fredericks, Loza, Rivas, and 2nd Story (collectively “Housing Authority defendants”) filed opposition to the motion.

On August 13, 2026, defendants NBCC, Virgen, Morgan, Schwarz, and Chapa (collectively “NBCC defendants”) filed opposition to the motion.

Analysis:

“(a) An injunction may be granted in the following cases:

“(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.

“(2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.

“(3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

“(4) When pecuniary compensation would not afford adequate relief.

“(5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.

“(6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings.

“(7) Where the obligation arises from a trust.” (Code Civ. Proc., § 526, subd. (a).)

“A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor. No preliminary injunction shall be granted without notice to the opposing party.” (Code Civ. Proc., § 527, subd. (a).)

“ ‘The general purpose of a preliminary injunction is to preserve the status quo pending a determination on the merits of the action. [Citation.] “ ‘The granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the defendant should or . . . should not be restrained from exercising the right claimed by him [or her].’ ” [Citation.]’ (SB Liberty, LLC v. Isla Verde Assn., Inc. (2013) 217 Cal.App.4th 272, 280.)

The most glaring problem with plaintiff’s motion is that it seeks relief that is neither sought in the FAC nor related to the requested relief. As noted above, plaintiff only seeks monetary damages.

“A preliminary injunction is warranted only if there is on file a complaint which states a sufficient cause of action for injunctive relief of the character embraced in the preliminary injunction. [Citation.] The essential conditions for granting temporary injunctive relief are that the complaint allege facts which appear to be sufficient to constitute a cause of action for injunction and that the injunction is reasonably necessary to protect the legal rights of the plaintiff pending litigation. [Citation.]” (Moreno Mut. Irr. Co. v. Beaumont Irr. Dist. (1949) 94 Cal.App.2d 766, 778.)

Because the FAC fails to state any cause of action for which injunctive relief may be granted, the motion fails. The court also notes that plaintiff’s request for an order for production of her administrative file is not a proper subject for a preliminary injunction. Those documents, subject to any legally supported objections, are properly sought by way of the discovery process.

Alternatively, even if the FAC sought injunctive relief, plaintiff has not met her burden of demonstrating a reasonable likelihood of prevailing on her claims.

“In deciding whether to issue a preliminary injunction, a trial court must evaluate two interrelated factors: (i) the likelihood that the party seeking the injunction will ultimately prevail on the merits of his claim, and (ii) the balance of harm presented, i.e., the comparative consequences of the issuance and nonissuance of the injunction. [Citations.] The scope of available preliminary relief is necessarily limited by the scope of the relief likely to be obtained at trial on the merits.” (Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 441-442.)

“The trial court’s determination must be guided by a “mix” of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (Butt v. Superior Court, supra, 4 Cal.4th at p. 678.)

Plaintiff has not submitted any evidence that shows she is likely to prevail on any of her claims.

Plaintiff’s objections, filed on August 17, 2026, are without merit and are overruled.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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